Dunn & Acosta LLP
Conroe, TX
Phone 713-555-4341

Settlement Demand

1 Jul 2024

Claims Department
Harbor Point Mutual Auto Insurance

Re: Claim C-1478 - Demand for settlement

Dear Claims Representative:

Our office represents Nicholas Cook in connection with a collision that occurred on 28 Nov 2023 at an intersection where your insured turned left across the path of our client's vehicle. The facts of the collision place responsibility squarely on your insured. Our client had the right of way, was traveling lawfully, and had no reasonable opportunity to avoid the impact.

As a direct result of the collision, our client suffered a significant whiplash injury to the neck and upper back. Symptoms have included persistent neck pain, reduced range of motion, headaches, and muscle spasms that have interfered with daily activities and work. Our client has followed medical advice, attended physical therapy, and continues to experience limitations that may not fully resolve.

The medical documentation, treatment records, and wage information supporting these damages are available and will be provided upon request. We note that the cost of care, lost income, and pain and suffering all continue to accrue.

Accordingly, we demand payment of $77,000.00 to settle this claim in full. This offer will remain open for thirty days from the date of this letter. If we do not receive a satisfactory response within that period, we are authorized to file suit without further notice.

Please direct all future communications regarding this matter to our office.

Expert review: Nicole Ward, neurologist

Sincerely,

Brandon Barnes
Dunn & Acosta LLP